

23AHCV02871 23AHCV02871

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-21

Motion: CROSS-DEFENDANT OPERATING ENGINEERS PENSION TRUST'S MOTION FOR SUMMARY JUDGMENT

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Case Number: 23AHCV02871 Hearing Date: July 21, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JOMARIE
JENNINGS,

Plaintiff(s),

vs.

CITY OF
PASADENA,

Defendant(s).

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CASE NO.: 23AHCV02871

[TENTATIVE]

ORDER RE: CROSS-DEFENDANT OPERATING ENGINEERS PENSION TRUST'S MOTION
FOR SUMMARY JUDGMENT

Dept.

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8:30

a.m.

July 21,
2026

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I.

INTRODUCTION

On December 12, 2023, plaintiff Jomarie

Jennings ("Plaintiff") filed this action against the City of Pasadena ("City").

Plaintiff alleges that on December 31, 2022, she was walking and pushing a cart in the rain on the public sidewalk near 301 North Lake Avenue on the northwest corner of Locust and North Lake Avenue ("Property") when she encountered a sloped sidewalk and fell.

On April 4, 2024, City filed a cross-complaint against 301 Lake Office LLC ("301 Lake Office") and Operating Engineers Pension Trust ("OEPT") for express indemnity, equitable indemnity, implied indemnity, declaratory relief, and contribution. City alleges that it entered into a valid and enforceable License Agreement No. 14,009 with OEPT ("License") which authorized OEPT to construct, modify, and maintain the sidewalk Plaintiff allegedly slipped on. (Cross-Compl., ¶ 7.)

On April 1, 2026, OEPT filed this motion for summary judgment on City's cross-complaint on the grounds that City cannot show that the License is a contract imposing liability on OEPT as a former owner of the Property and or that OEPT had any continuing obligations or duties arising from the license agreement that survived conveyance of the Property.

City filed an opposition brief on July 1, 2026.

OEPT filed a reply brief on July 10, 2026.

II. LEGAL STANDARD

In reviewing a motion for summary judgment, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.)

III. DISCUSSION

OEPT contends that City improperly pursues indemnity claims against OEPT arising from a License Agreement that allowed OEPT to construct and maintain a sidewalk while it owned the Subject Property. OEPT claims it did not own, possess, or control the Subject Property at the time of the incident because the Subject Property was sold four years before Plaintiff sustained her injuries. (UMF Nos. 1, 3, 9.) Cory Carlson, the

president of Washington Capital Management, Inc., which manages real property owned by OEPT, declares that OEPT owned 301 North Lake, LLC, who sold the Property to 301 North Lake Office LLC in 2018. (Ex. 5, ¶ 3.) OEPT does not have any ownership interest in 301 North Lake Office and did not have any ownership interest in 301 North Lake Office at the time of Plaintiff's fall.

OEPT contends that the License is not a contract with continuing obligations but a revocable permission to use public property that was transferred after the Property was sold. OEPT emphasizes that Section 18 of the License expressly provides that "Licensee's rights, obligations and benefits under this license shall run with the land and shall be binding on Licensee's executors, heirs, successors and assigns." (UMF No. 12.) OEPT relies on *Alameda County v. Ross* (1939) 32 Cal.App.2d 135, 143 ("Ross") for the proposition that a license is not a bilateral contract without continuing obligations, but Ross is factually inapposite. In Ross, the court analyzed whether the County of Alameda could enter into a license that obligated it to expend public money in repairing or maintaining part of a bridge used exclusively for the benefit of a private railroad company. (32 Cal.App.2d at p. 141.) The Ross court concluded that the contract was void and illegal because it was "revocable at the pleasure of the secretary of war at any time with or without cause" and said unconditional revocability "creates no vested interest" or mutuality of obligation. (Id. at p. 142.)

In contrast, the License here is revocable by "[e]ither party... in whole or in part, at any time and for any reason, with or without cause, upon thirty (30) days' written notice to the other, regardless of the amount of money or improvements [OEPT] may have invested in the license area and regardless of the duration of this agreement." (Ex. 7, Section 7.) The Court additionally notes that the grant deed, attached as Exhibit 6 to the Notice of Lodging, identifies 301 North Lake, LLC as the grantor and does not identify OEPT at all, which raises doubts that OEPT's License was transferred as part of a sale that did not involve OEPT. Section 20 of the License also prohibits the assignment or transfer of the License and its rights without prior written consent of the City. While OEPT argues that Section 20 only applies to transfers made during the time OEPT owned the Property, not to transfers at sale, the License does not include such limiting language and there is no evidence that the parties intended such a distinction. (Motion, pp. 8-9.) The fact that Section 18 states that any rights and obligations run with the land could reasonably be interpreted as imposing the

obligations of the License on new owners in the event of sale, without automatically terminating the obligations of OEPT. (See Ex. 7, Section 21 [requiring recording of executed license with county recorder].) Accordingly, OEPT has not shown that summary judgment is warranted based on Section 18 of the License.

Next, OEPT alternatively argues that the License did not impose any ongoing indemnity obligations because a license is a personal privilege that terminates upon conveyance of the property. (Motion, pp. 5-6.) This interpretation of the License contradicts Section 18, which provides that any rights, obligations and benefits shall run with the land and be binding on successors and assigns. It also ignores Section 6, which states that the license "shall be for an indefinite term, revocable on thirty days' written notice." Section 14 further provides that the license shall "shall terminate automatically at any time Licensee removes its improvements from the license area and Section 15 states that if the license is terminated for any reason, "[OEPT] shall, at its expense and prior to said termination, quietly remove all improvements from the designated area or such part thereof as may be required by City, and shall at its expense, restore the area to its original condition" or as otherwise required. Here, OEPT presents no evidence that the License was terminated according to its terms, thereby precluding summary judgment on this ground.

Last, OEPT claims that at the time of the incident, it had no ownership, possession, or control over the property and therefore lacked any legal ability to access, repair, or maintain the sidewalk. (Motion, p. 6.) OEPT claims that liability for property-related duties generally depends on ownership, possession, or control at the time of the incident. OEPT adds that it did not owe any duty to indemnify City because any continuing duty imposed by the License became impossible to perform after the sale and OEPT no longer had ownership, possession, or control of the sidewalk. However, the indemnity agreement provides that OEPT will "indemnify, hold harmless, release and defend the City ... from any and all liability, loss, suits, claims, damages, costs, and expenses (including attorney's fees and costs of litigation) which directly or indirectly result from, or arise out of ... (b) any activity, use or performance on the license area and improvements thereon, including its design or modification." (Ex. 7, Section 11(A).) Therefore, the claim for indemnity does not solely exist based on maintenance or repair of the Property, but OEPT's design of the sloped sidewalk that Plaintiff allegedly slipped on. Accordingly, OEPT fails to show that the License, as a matter of

law, precludes any indemnity claims.

IV.

CONCLUSION

Accordingly, the motion for summary judgment is DENIED.

Dated
this 21st
day of July 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.